

TENTATIVE RULING

Case: Sweeten v. GRV dba Grand River Villa et al.
Case No. CV2025-3756

Hearing Date: March 25, 2026 **Department Fourteen** **9:00 a.m.**

The Court declines to rule on defendants GRV, dba Grand River Villa and Ciminocare's evidentiary objections as the Court did not rely upon the paragraphs challenged in determining this motion.

Defendants' motion to compel arbitration is **GRANTED IN PART**. (9 U.S.C. § 2 et seq.; Code Civ. Proc., §§ 1281, 1281.2.) The Court finds that the issues of the validity and enforceability of the arbitration agreement between the parties was delegated to an arbitrator for determination. (*Aanderud v. Superior Court* (2017) 13 Cal.App.5th 880, 891-892 [parties can agree to arbitrate the gateway question of arbitrability]; *Sandquist v. Lebo Automotive, Inc.* (2016) 1 Cal.5th 233, 252 [procedural questions which grow out of the dispute and bear on its final disposition, such as a challenge to the enforceability of the entire contract in which an arbitration clause appears, is presumptively for the arbitrator and not for the judge to decide]; see *Banner Entertainment, Inc. v. Superior Court* (1998) 62 Cal.App.4th 348, 357 [state law principles govern the enforceability of arbitration agreements even where the FAA applies]; Soto Decl., ¶¶ 3 – 5, Exhibits A, B.)

This matter is **STAYED** pending the outcome of the arbitration on these issues. (Code Civ. Proc., § 1281.4.)

If no hearing is requested, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.